

IN THE CIRCUIT COURT OF THE NINETEENTH JUDICIAL CIRCUIT

LAKE COUNTY, ILLINOIS
CHANCERY DIVISION

PRESERVATION OF COMMUNITY)
WELL-BEING COLLECTIVE LLC, an)
Illinois limited liability company;)
SUZANNE P. WILLIAMS, ROBIN A. WELLER,)
PAMELA A. HERMON, MARION L. EICKHOFF,)
GABRIELA U. APPELT, MARY ANNE FORTMANN,)
ROBERT C. BAUM, CHERYL FEDDOR,)
and GAVIN RYCHENER,)
individuals,)
)
Plaintiffs,)
)
v.)
)
VILLAGE OF GRAYSLAKE, an Illinois)
municipal corporation; T5 DATA)
CENTERS, LLC, a Delaware limited)
liability company; and ALTER ASSET)
MANAGEMENT COMPANY, an Illinois)
corporation,)
)
Defendants.)

Case No. 2026CH00000171

COMPLAINT FOR DECLARATORY AND INJUNCTIVE RELIEF

Plaintiffs, Preservation of Community Well-being Collective LLC, an Illinois limited liability company (the "Collective"); Suzanne P. Williams, Robin A. Weller, Pamela A. Hermon, Marion L. Eickhoff, Gabriela U. Appelt, Mary Anne Fortmann, Robert C. Baum, Cheryl Feddor, and Gavin Rychener, individually and on behalf of residents of the Village of Grayslake, the Village of Mundelein, and the Village of Round Lake Park, by and through their attorneys, the Law Office of Ronald D. Cummings, for their Complaint against Defendants Village of Grayslake, T5 Data Centers, LLC, and Alter Asset Management Company, state as follows:

NATURE OF THE ACTION

1. This action seeks declaratory and injunctive relief from a series of discretionary land-use approvals issued by the Village of Grayslake between September 23, 2024 and May 6, 2025, authorizing development of a hyperscale data center campus of up to 472 acres and 10,100,000 square feet of buildings on land that the Village's own Comprehensive Plan designates for "light industrial/office" use and that the Village's own Sustainability Plan identifies as a wetland restoration priority.

2. The approved campus, known as T5@Chicago IV, is expected to consume approximately 1.55 gigawatts of electrical power from Commonwealth Edison Company, with up to 1.2 gigawatts available for lease to data center customers. The campus will require backup generation capacity in the range of 1.5 to 2 gigawatts of stationary diesel engines and will operate continuously within close proximity to residential neighborhoods in Grayslake, Mundelein, and Round Lake Park. If fully built, it will be the largest single development project in Lake County history.

3. Plaintiffs do not seek to prohibit all economic development in the Village of Grayslake. Plaintiffs do, however, contend that the specific approvals at issue here are inconsistent with the Village's own adopted policies, were obtained through procedurally deficient hearings, authorize a category of land use (hyperscale data center) that does not exist in the Village's Zoning Ordinance, and were granted without adequate consideration of the planning, sustainability, and public-health questions that the Village's own policies require be addressed. Plaintiffs ask this Court to declare the approvals invalid, to enjoin further building permits or site work pursuant to those approvals, to void the development agreements executed in connection with them, and to grant such other relief as justice requires.

JURISDICTION AND VENUE

4. This Court has jurisdiction over the subject matter of this action pursuant to Article VI, Section 9 of the Illinois Constitution, the Illinois Declaratory Judgment Act, 735 ILCS 5/2-701, the Illinois Open Meetings Act, 5 ILCS 120/3, and this Court's general equitable jurisdiction.

5. Venue is proper in Lake County, Illinois pursuant to 735 ILCS 5/2-101 because the transaction or some part thereof out of which the cause of action arose occurred in Lake County, and because Defendant Village of Grayslake is a municipal corporation located in Lake County.

6. Plaintiffs assert only Illinois state-law causes of action in this Complaint. No count in this Complaint arises under federal law for purposes of 28 U.S.C. § 1331. No claim for relief pleaded herein depends upon or is conditioned on the interpretation, application, or outcome of any federal statute, regulation, or agency determination. No federal statutory provision is a necessary element of any count. Plaintiffs disclaim any relief that would require this Court to interpret or apply federal law, and any

construction of this Complaint that would introduce a federal question is disclaimed. References in this Complaint to federal statutes, federal regulatory processes, or federal agencies, if any, appear only as background factual context and are not predicates for any claim for relief. Plaintiffs' Illinois state-law claims stand or fall independently of the timing, existence, or outcome of any federal, state, or county environmental review process.

PARTIES

A. Plaintiffs

7. Plaintiff Preservation of Community Well-being Collective LLC ("the Collective") is an Illinois limited liability company organized and existing under the laws of the State of Illinois, with its principal place of business in Lake County. The Collective was formed by residents and property owners of the Saddlebrook Farms community and other affected communities in the Village of Grayslake, the Village of Mundelein, and the Village of Round Lake Park for the purpose of preserving the character, health, and well-being of their communities in the face of the discretionary land-use approvals challenged herein. Each of the Collective's members owns real property, or holds a residential interest in real property, within the area that will be substantially affected by those approvals.

8. Plaintiff Suzanne P. Williams is an individual resident of the Village of Round Lake Park, Illinois. Ms. Williams resides at 2525 Lippizan Lane, with a Grayslake, Illinois 60030 mailing address, in the Saddlebrook Farms community, an age-restricted residential community located within the corporate limits of the Village of Round Lake Park by strip annexation, situated near the intersection of Peterson Road and the vicinity of Alleghany Road. Ms. Williams owns her home and holds a leasehold interest in the underlying parcel in accordance with the customary Saddlebrook Farms arrangement, whereby residents own their homes and lease the land upon which those homes are situated from the common land owner. Ms. Williams's property is located directly across Alleghany Road from the Subject Property (the T5@Chicago IV campus). Ms. Williams has personal, particularized interests that will be directly injured by the T5 approvals and the construction and operation of the T5 campus, including without limitation: (a) the market value of her home; (b) the use and enjoyment of her home and its outdoor spaces, including her garden and deck; (c) the availability, quality, and safety of her water supply, which is drawn from a private well and is particularly susceptible to injury from the campus's water withdrawal, wastewater discharge, stormwater runoff, and any wetland fill activity on or near the campus; (d) the air quality at her residence, which is particularly consequential to Ms. Williams because she has a pre-existing bronchial health condition that renders her more susceptible than the general population to injury from air emissions arising from the campus's diesel backup generation infrastructure, construction dust, and truck traffic; and (e) the quiet enjoyment of her home and surrounding community, including the amenities and character of Saddlebrook Farms as advertised to and relied upon by its residents. Ms. Williams's injuries are concrete,

particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint.

9. Plaintiff Robin Annette Weller is an individual resident of the Village of Round Lake Park, Illinois. Ms. Weller resides at 1813 Blue Ribbon Lane, with a Grayslake, Illinois 60030 mailing address, in the Saddlebrook Farms community, the same age-restricted residential community identified in the preceding paragraph. Ms. Weller owns her home and holds a leasehold interest in the underlying parcel in accordance with the customary Saddlebrook Farms arrangement. Ms. Weller's home is located approximately 1.6 miles by road from the Subject Property, and a shorter distance in a straight line, placing Ms. Weller squarely within the corridor of communities directly affected by the T5 campus. Ms. Weller has invested in her property by cultivating native wildflower plants and shrubs on three sides of her home, an ecologically sensitive form of landscaping whose viability depends on the surrounding environmental conditions of the community. Ms. Weller has personal, particularized interests that will be directly injured by the T5 approvals and the construction and operation of the T5 campus, including without limitation: (a) the market value of her home; (b) the use and enjoyment of her home, garage, and native-plant landscape, which depends on pollinators, soil quality, air quality, and hydrology that industrial adjacency threatens; (c) health impacts from noise, light, air emissions, and other operational effects of a hyperscale data center located in close proximity to residential neighborhoods, the nature and magnitude of which cannot presently be assessed because the Village approved the campus without commissioning or considering sufficient independent studies of those impacts; and (d) the quiet enjoyment of her home and surrounding community. Ms. Weller's injuries are concrete, particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint. Ms. Weller's inability to assess the specific magnitude of expected health and environmental impacts is itself a particularized injury arising directly from the Village's failure to develop an adequate record before granting the approvals, as further alleged in Count III below.

10. Plaintiff Pamela Ann Hermon is an individual resident of the Village of Round Lake Park, Illinois. Ms. Hermon resides at 155 Hialeah Lane, with a Grayslake, Illinois 60030 mailing address, in the Saddlebrook Farms community, the same age-restricted residential community identified in the preceding paragraphs. Ms. Hermon owns her home and holds a leasehold interest in the underlying parcel in accordance with the customary Saddlebrook Farms arrangement. Ms. Hermon's home is located on the western side of the Saddlebrook Farms subdivision, approximately 1.5 miles from the Subject Property. Ms. Hermon purchased her home upon the completion of its construction in October 2023 and it is her principal residence. The property includes a three-bedroom principal structure, one bedroom of which Ms. Hermon uses as a craft room, an all-season room that Ms. Hermon uses as her home office, a two-car garage, a front porch, and a rear deck of approximately ten feet by fifteen feet under a pergola. Ms. Hermon works from her home office and spends substantial time in her rear outdoor spaces. Ms. Hermon has personal, particularized interests that will be directly injured by the T5 approvals and the construction and operation

of the T5 campus, including without limitation: (a) the market value of her home, which is of recent construction, represents a substantial investment, and was acquired in reliance on the character of the surrounding community as advertised to and relied upon by Saddlebrook Farms residents; (b) the use and enjoyment of her home, home office, craft room, rear deck, and pergola, together with the outdoor spaces associated with the property; (c) the air quality at her residence, which is particularly consequential to Ms. Hermon because she has a pre-existing allergic condition triggered by airborne pollen, dust, and airborne pollutants, rendering her more susceptible than the general population to injury from air emissions arising from the campus's diesel backup generation infrastructure, construction dust, and truck traffic; and (d) the quiet enjoyment of her home and surrounding community, including the amenities and character of Saddlebrook Farms as advertised to and relied upon by its residents. Ms. Hermon's injuries are concrete, particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint.

11. Plaintiff Marion L. Eickhoff is an individual resident of the Village of Round Lake Park, Illinois. Ms. Eickhoff resides at 1520 Meadow View Lane, with a Grayslake, Illinois 60030 mailing address, in the Saddlebrook Farms community, the same age-restricted residential community identified in the preceding paragraphs. Ms. Eickhoff owns her home and holds a leasehold interest in the underlying parcel in accordance with the customary Saddlebrook Farms arrangement. Ms. Eickhoff's home is located approximately one-half mile from the Subject Property, placing Ms. Eickhoff squarely within the corridor of properties directly affected by the T5 approvals and the construction and operation of the T5 campus. Ms. Eickhoff purchased and moved to her home in Saddlebrook Farms in or about 2025 in reliance on the character of the community as advertised to and relied upon by Saddlebrook Farms residents; the pendency, scope, and character of the T5 approvals were material to Ms. Eickhoff's purchase decision, and she would not have purchased and moved to a Saddlebrook Farms home had she been informed of them at the time of purchase. Ms. Eickhoff's home includes a screened-in sunroom in which she spends the majority of her time, a front porch, a fireplace, two bedrooms, an office, and an attached garage, and the property backs onto a meadow whose natural character is integral to the use and enjoyment of the property. Ms. Eickhoff has personal, particularized interests that will be directly injured by the T5 approvals and the construction and operation of the T5 campus, including without limitation: (a) the market value of her home, which represents a recent investment made in reliance on the character of the surrounding community as advertised to and relied upon by Saddlebrook Farms residents; (b) the use and enjoyment of her home, including without limitation her screened-in sunroom, front porch, and the meadow that adjoins the rear of the property, each of which depends on the environmental, acoustic, and aesthetic character of the surrounding area; (c) the air quality, ambient noise levels, and light conditions at her residence, which will be adversely affected by the campus's diesel backup generation infrastructure, construction dust, truck traffic, cooling and mechanical systems, and exterior illumination; and (d) the quiet enjoyment of her home and

surrounding community, including the amenities and character of Saddlebrook Farms as advertised to and relied upon by its residents. Ms. Eickhoff's injuries are concrete, particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint.

12. Plaintiff Gabriela Ulrike Appelt is an individual resident of the Village of Round Lake Park, Illinois. Ms. Appelt resides at 213 Saddleshire Court, with a Grayslake, Illinois 60030 mailing address, in the Saddlebrook Farms community, the same age-restricted residential community identified in the preceding paragraphs. Ms. Appelt owns her home and holds a leasehold interest in the underlying parcel in accordance with the customary Saddlebrook Farms arrangement. Ms. Appelt has resided at the Saddlebrook Farms property for approximately twenty years. Ms. Appelt's home is located approximately one mile from the Subject Property. Ms. Appelt's home is a lakeside villa attached to a neighboring residence at the garage wall, and includes two bedrooms, two and one-half bathrooms, an office, a breakfast room, a kitchen, a living room, a dining room, a sunroom, a two-car attached garage, and a courtyard between the two attached residences. Ms. Appelt keeps two small dogs at the property and walks them at Behm Park twice each day, throughout the year. Ms. Appelt has personal, particularized interests that will be directly injured by the T5 approvals and the construction and operation of the T5 campus, including without limitation: (a) the market value of her home, which represents approximately twenty years of investment in her property and the environmental character of the Saddlebrook Farms community; (b) the use and enjoyment of her home, sunroom, courtyard, and outdoor spaces, including her regular use of Behm Park for the walking of her two small dogs; (c) the air quality at her residence, outdoor spaces, and Behm Park, which is particularly consequential to Ms. Appelt because she has a mild asthma condition that renders her more susceptible than the general population to injury from air emissions arising from the campus's diesel backup generation infrastructure, cooling and mechanical systems, construction dust, and truck traffic; (d) the environmental character of the property and surrounding community, including the wildlife populations that Ms. Appelt observes at and near her home; and (e) the quiet enjoyment of her home and surrounding community, including the amenities and character of Saddlebrook Farms as advertised to and relied upon by its residents. Ms. Appelt's injuries are concrete, particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint.

13. Plaintiff Mary Anne Fortmann is an individual resident of the Village of Grayslake, Illinois. Ms. Fortmann resides at 33000 N. Forest Drive, Grayslake, Illinois 60030, in the Arbor Vista subdivision, and has resided at that address for more than thirty years, where she and her husband raised their children. Ms. Fortmann's home is located approximately two miles from the Subject Property (the T5@Chicago IV campus). Ms. Fortmann's property consists of a single-family residence on an approximately one-acre lot in which Ms. Fortmann has, over more than thirty years of residence, cultivated an active wildlife habitat that supports and attracts native birds and mammals, including owls, sandhill cranes, hawks, foxes, and various other species. Ms. Fortmann's property is adjacent to public lands that Ms. Fortmann and her family

use for outdoor recreation, including walking, on a regular basis. Ms. Fortmann and her family also keep two dogs and domestic fowl at the property, all of which spend substantial time outdoors. Ms. Fortmann has personal, particularized interests that will be directly injured by the T5 approvals and the construction and operation of the T5 campus, including without limitation: (a) the market value of her home, which represents more than thirty years of investment in her property and the environmental character of the Arbor Vista subdivision; (b) the use and enjoyment of her home, the one-acre lot she has cultivated as wildlife habitat, and the adjacent public lands, each of which depends on the environmental, acoustic, and aesthetic character of the surrounding area; (c) the environmental character of the property and adjacent public lands, including the health of the wildlife populations that Ms. Fortmann has cultivated her property to support, which will be adversely affected by construction dust, air emissions, stormwater discharge and flooding, and habitat fragmentation associated with the T5 campus; (d) the air quality at her residence and outdoor spaces, which will be adversely affected by air emissions arising from the campus's diesel backup generation infrastructure, cooling and mechanical systems, construction dust, and truck traffic; and (e) the quiet enjoyment of her home and surrounding community, including the ambient noise and light conditions on which the rural residential character of the Arbor Vista subdivision depends. Ms. Fortmann's injuries are concrete, particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint.

14. Plaintiff Robert C. Baum is an individual resident of Lake Villa, Illinois, residing at 37200 N. Cremona Avenue, Lake Villa, Illinois 60046. Mr. Baum is an heir with a one-half (1/2) beneficial interest in the residential real property located at 31265 N. Alleghany Road, Grayslake, Illinois 60030 (the "Baum Property"), Property Index Number 10-03-400-007. Mr. Baum's parents, Richard "Rick" Baum (deceased September 24, 2025) and Corrine M. Baum, owned the Baum Property, and Mr. Baum's beneficial interest vested by operation of law, subject to the ongoing probate administration. Mr. Baum's brother Scott is a co-heir with a corresponding one-half (1/2) beneficial interest. The Baum Property is a residential parcel located on North Alleghany Road less than 500 yards from the Subject Property (the T5@Chicago IV campus), placing the Baum Property among the residential properties nearest to the T5 campus. The Baum Property includes a residence with a three-season room and a deck, both of which face the Subject Property and afford direct views onto it. Mr. Baum has personal, particularized interests in the Baum Property, arising from his one-half (1/2) beneficial interest as heir, that will be directly injured by the T5 approvals and the construction and operation of the T5 campus, including without limitation: (a) the market value of the Baum Property, which as a residential parcel located less than 500 yards from a hyperscale data center campus is subject to substantial devaluation, and which is the principal particularized injury for which Mr. Baum seeks redress; (b) the use and enjoyment of the Baum Property, including without limitation the three-season room and deck that face the Subject Property and afford direct views onto it, the character of which will be materially altered by the construction and operation of the T5 campus; (c) the air quality, ambient

noise levels, and light conditions at the Baum Property, which will be adversely affected by the campus's diesel backup generation infrastructure, cooling and mechanical systems, construction dust, truck traffic, and exterior illumination; and (d) the quiet enjoyment of the Baum Property and the surrounding North Alleghany Road corridor. Mr. Baum's injuries, arising from his one-half (1/2) beneficial interest in the Baum Property, are concrete, particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint.

15. Plaintiffs Cheryl Feddor and Gavin Rychener are individual residents of the Village of Grayslake, Illinois. Ms. Feddor and Mr. Rychener own and reside at the residential property located at 515 Bristol Lane, Grayslake, Illinois 60030, in central Grayslake, approximately 3.0 miles north-northeast of the Subject Property. A utility pole has been installed in the backyard of their property. Upon information and belief, the utility pole was installed in connection with the expansion of electrical distribution infrastructure undertaken to serve the T5 campus. The installation of utility infrastructure on their own residential property illustrates that the physical impacts of the T5 campus and its supporting infrastructure extend well beyond the immediate vicinity of the Subject Property and into established residential neighborhoods of the Village. Ms. Feddor's and Mr. Rychener's injuries are concrete, particularized, traceable to the challenged approvals, and would be redressed by the relief sought in this Complaint.

16. Each individual Plaintiff has standing to bring this action under Section 11-13-15 of the Illinois Municipal Code, 65 ILCS 5/11-13-15, and under the Illinois Declaratory Judgment Act, 735 ILCS 5/2-701, having suffered or being threatened with particularized injury distinct from that suffered by the general public, including without limitation diminution of residential property values, exposure to noise and air emissions from stationary diesel backup generation, increased fire and hazardous-materials risk, disturbance of private groundwater sources, loss of enjoyment of residential and natural surroundings, and prolonged construction-related disruption.

B. Defendants

17. Defendant Village of Grayslake is an Illinois municipal corporation organized and existing under the Illinois Municipal Code, 65 ILCS 5/1-1-1 et seq., located in Lake County, Illinois, with its principal office at 10 South Seymour Avenue, Grayslake, Illinois 60030. The Village adopted the discretionary land-use approvals at issue in this action.

18. Defendant T5 Data Centers, LLC is, upon information and belief, a Delaware limited liability company with its principal place of business in Atlanta, Georgia, doing substantial business in the State of Illinois, and is the developer of the data center campus authorized by the approvals at issue in this action. T5 Data Centers, LLC is named as a necessary party because its interests will be directly and substantially affected by the relief sought.

19. Defendant Alter Asset Management Company is, upon information and belief, an Illinois corporation with its principal place of business in Skokie, Illinois, and is the master developer of the Cornerstone of Grayslake planned unit development within which the T5 campus is sited. Alter Asset Management Company is named as a necessary party because, upon information and belief, it retains property interests, contractual rights, and obligations related to the parcels and approvals at issue in this action.

20. Defendant Alter Asset Management Company and its principal, William Alter, have a documented multi-decade relationship with the Village of Grayslake regarding discretionary land use decisions affecting the vicinity of the Subject Property. In *Unity Ventures*, an Illinois Partnership, *LaSalle National Bank as Trustee under Trust No. 103331*, and *William Alter v. County of Lake, Village of Grayslake, et al.*, 841 F.2d 770 (7th Cir. 1988), affirming 631 F. Supp. 181 (N.D. Ill. 1986), William Alter was a party to litigation challenging the Village's exercise of discretionary control over sewer service and development rights on a 585-acre parcel of farmland in unincorporated Lake County located south of Grayslake and southeast of Round Lake Park, within the same geographic corridor as the Subject Property. That litigation arose from a 1976 agreement between Lake County and the Village of Grayslake designating a "sphere of influence" that included the Alter-controlled parcels, granting the Village discretionary approval authority over sewer connections in the sphere of influence. Additional public documentation, including a 1986 Settlement Agreement referenced in contemporaneous press coverage from September 1987, documented that the Alter interests, the Village of Grayslake, Lake County, and the Village of Round Lake Park entered into multi-party arrangements resolving development rights on approximately 2,500 acres of adjacent parcels known as the Heartland property. Upon information and belief, the Alter interests have retained continuous property, contractual, and beneficial interests in parcels within the Central Range described herein through the present, including with respect to parcels comprising the Subject Property, and the Village of Grayslake and the Alter interests have engaged in a continuous course of dealing regarding discretionary land use approvals for these parcels for approximately fifty years. Alter Asset Management Company is therefore a necessary party to this action.

FACTUAL ALLEGATIONS

A. The Subject Property and Its Prior Zoning

21. The land authorized for development under the challenged approvals (the "Subject Property") consists of up to 472 acres located within the larger 640-plus-acre Cornerstone of Grayslake planned unit development (the "Cornerstone PUD"), situated along Peterson Road between Alleghany Road and Illinois Route 83 in the southern portion of the Village of Grayslake, Lake County, Illinois. The anchor

parcel is identified as Lake County Permanent Index Number 10-10-200-014, with a street address of 30907 North Alleghany Road, Grayslake, Illinois. A true and correct copy of the Cornerstone PUD originating ordinance dated October 6, 2009, together with all subsequent amendments, is attached hereto as **Exhibit D**.

22. The Cornerstone PUD was originally approved by the Village of Grayslake at a regular meeting of the Village Board held on October 6, 2009. The 2009 approval contemplated a mix of light industrial, research and development, office, retail, and residential uses across the master-planned development, governed by a detailed Cornerstone Pattern Book containing site plans, architectural guidelines, environmental and engineering standards, and building concepts that articulated the planning vision for the Cornerstone project.

23. The Subject Property is located within the area designated by the Village as the "Central Range" or "Central Range Subarea," as that term is used in the Village's 2005 Comprehensive Plan and the Village's 2017 Sustainability Plan.

B. The 2024 to 2025 Approval Cycle

24. The residential character of the Cornerstone PUD was eliminated two weeks before the approval cycle began. On September 9, 2024, the Plan Commission/Zoning Board of Appeals held a public hearing on a petition by The Alter Group, the owner of the Cornerstone planned unit development, to amend the special use permit and general development plan for the Cornerstone PUD to change the zoning of the Cornerstone west parcel from residential to office, research and development, light industrial, and retail uses. The approved minutes of that meeting record that the request was "identical to the zoning change made to the south parcel in Cornerstone in 2021" and that it would "eliminate the last residential uses in the Cornerstone PUD"; that the public hearing was opened at 6:02 p.m. and closed at 6:03 p.m.; and that there was no public comment. The Plan Commission/Zoning Board of Appeals recommended approval of the amendment that same evening. Two weeks later, the first T5 public hearings were held on the same Cornerstone PUD.

25. Between September 23, 2024 and May 6, 2025, the Village of Grayslake conducted a series of public hearings and Village Board meetings culminating in approval of the T5 data center campus on the Subject Property.

26. The Village has publicly acknowledged the boundaries of this approval cycle. The Village's published Approved T5 Data Center Campus FAQ (a true and correct copy of which is attached hereto as **Exhibit H**) states, in pertinent part: "The approval of the data center campus was completed over an almost eight-month period between 9/23/2024 and 5/6/2025. The approval occurred after a number of public hearings and public Village Board meetings during that period."

27. Upon information and belief, the approvals issued during this cycle include one or more of the following discretionary actions: amendment of the Cornerstone PUD ordinance, issuance of one or more special use permits, approval of one or more preliminary or final planned development plats, and other associated ordinances and resolutions. The precise approvals will be identified by ordinance and resolution number in an amended pleading once the specific ordinance numbers and adoption dates have been fully verified against the Village's produced records. True and correct copies of the ordinances and resolutions constituting the 2024 to 2025 approvals are attached hereto as Exhibit E.

28. The approvals authorize development of up to 472 acres with up to 10,100,000 square feet of data center buildings, anchored by approximately 1.55 gigawatts of total electrical power supply secured from Commonwealth Edison Company. Upon information and belief, of that 1.55 gigawatts of total capacity, up to 1.2 gigawatts will be available for lease to T5's data center customers.

29. Upon information and belief, the Village and Defendant T5 Data Centers, LLC executed one or more development agreements during or in connection with this approval cycle. Upon information and belief, the development agreement or agreements include one or more contractual provisions imposing phasing requirements on T5, including without limitation a requirement that T5 complete a specified minimum number of phases or buildings of the project. The executed development agreement produced by the Village on June 16, 2026 is under continuing review by counsel, and specific contractual provisions will be pleaded with particularity in an amended pleading. A true and correct copy of the executed development agreement or agreements is attached hereto as Exhibit F.

30. The final approval action of the 2024 to 2025 cycle occurred at the regular meeting of the Village Board held on May 6, 2025. Upon information and belief, Elizabeth Davies, an incumbent Village Trustee at the time of the 2024 to 2025 approval cycle, was sworn in as Mayor of the Village of Grayslake at or in close proximity to the same May 6, 2025 Village Board meeting. Ms. Davies had previously served as a Village Trustee for approximately eleven years, from 2014 to 2025, and participated in votes during the September 2024 to May 2025 approval cycle in her capacity as Trustee prior to her swearing-in as Mayor.

31. The Village Board convened closed (Executive) sessions in connection with the T5 matter on May 6, 2025 (the night of the final approval action) and on June 17, 2025. The Village's Agendas and Minutes index records the existence of those Executive Sessions but the minutes have not been publicly released. The Executive Session minutes are the subject of pending public records requests and a Request for Review presently pending before the Illinois Attorney General's Public Access Counselor. True and correct copies of the Village Board and Plan Commission/Zoning Board of Appeals agendas and open-session minutes for meetings during the approval cycle are attached hereto as Exhibit G. A true and correct copy of the Request for Review filed with the Public Access Counselor on or about June 25, 2026 is attached hereto as Exhibit M.

C. The Approvals Are Inconsistent with the Village's Comprehensive Plan

32. The Village of Grayslake adopted a Comprehensive Plan in June 2005, true and correct copies of pertinent portions of which are attached hereto as **Exhibit A**. The 2005 Comprehensive Plan is, and at all times relevant to this action has been, the only comprehensive plan in effect for the Village. It has not been amended or updated in any material respect in the twenty years since adoption.

33. Chapter 4 of the 2005 Comprehensive Plan, in addressing the Central Range Subarea where the Subject Property is located, states in pertinent part: ***"Should the Central Range Subarea (see Appendix H) be developed for light industrial/office use, the percentage of non-residential land would increase to 24%."***

34. The Comprehensive Plan's reference to the Central Range Subarea as appropriate for "light industrial/office use" reflects a planning policy choice for low-intensity, low-impact non-residential development consistent with the surrounding residential context of southern Grayslake and the adjoining communities of Mundelein and Round Lake Park.

35. A hyperscale data center campus of up to 472 acres and 10.1 million square feet, with backup diesel generation capacity in the range of 1.5 to 2 gigawatts and continuous power consumption in excess of 1 gigawatt, is not "light industrial/office use" as that term is used in the 2005 Comprehensive Plan. It is, by orders of magnitude, the most intensive industrial use ever proposed for the Subject Property and exceeds the scale, character, and intensity of use contemplated by the Village's adopted planning policy.

36. The Village's Zoning Ordinance, Chapter 17 of the Village Code, at Section 17.04.020, expressly identifies as a purpose of the Zoning Ordinance ***"to promote the orderly development of Grayslake in accordance with the Comprehensive Plan."*** The 2024 to 2025 approvals are not in accordance with the Comprehensive Plan.

37. On or about April 7, 2026, approximately eleven months after the Village Board's final approval of the T5 campus on May 6, 2025, the Village of Grayslake caused to be prepared and adopted a supplement to the 2005 Comprehensive Plan entitled the "Grayslake Planning Supplement 2025" ("GPS 2025"). A true and correct copy of GPS 2025 is attached hereto as **Exhibit S**. GPS 2025 was prepared with the assistance of Camiros, Ltd., an outside planning consulting firm, and as stated on its cover page was prepared by the Village Board, the Plan Commission, and the Economic Development Commission, that is, the same Economic Development Commission that Trustee Vogel chaired in 2020 and that authored the 2020 EDC Plan pleaded above.

38. GPS 2025 contains an express Village admission that it amended and replaced the 2005 Comprehensive Plan's future land use designations. Page 12 of GPS 2025 states: "Any future land use shown

in the 2005 plans that differs from the Future Land Use Map (Figure #15) in this planning supplement no longer applies and is replaced by the future land use shown in Figure #15." GPS 2025 introduces a new "Grayslake Central Range" designation for an area of approximately 1,500 acres in the southern portion of the Village designated for "primarily non-residential development." The 2005 Comprehensive Plan, which was the operative comprehensive planning document at the time of the Village Board's 2024 to 2025 discretionary approvals of the T5 campus, did not use the "Grayslake Central Range" nomenclature and did not designate the Subject Property vicinity in the same manner as GPS 2025 Figure #15.

39. GPS 2025 contains express Village admissions of the multi-decade institutional pre-positioning of the Central Range pleaded in the paragraphs above. Page 25 of GPS 2025 states: "As envisioned in The 2005 Plan the Village took steps to create an area of approximately 1,500 acres that could be developed primarily for business uses. Economic development in this area would add more balance the area's tax base, create employment opportunities, support existing business and provide products/services locally. The actions included annexation of over 900 acres, approving agreements for providing for the extension of the municipal sewer system to the area, building road capacity, and building key water/sewer facilities to serve new businesses." These statements on the face of the Village's own official planning document confirm the pre-positioning pattern pleaded in the paragraphs above and constitute Village admissions of the annexation, infrastructure, and utility actions undertaken to accommodate large-scale non-residential development, including specifically the T5 campus.

40. GPS 2025 contains express Village admissions that the T5 campus approvals were pursued for the affirmative purpose of expanding the Village's revenue base, corroborating Mayor Davies's August 19, 2025 statement pleaded above. Page 6 of GPS 2025 states: "Potential financial resources from the Grayslake Central Range data center campus could provide resources for encouraging desired development, redevelopment, and renewal of older segments of the community." Page 25 of GPS 2025 further states: "The approved data center campus, if fully built, could add significant financial resources to support the capital investments envisioned in GPS 2025." These statements in the Village's own official planning document, adopted approximately eight months after Mayor Davies's August 19, 2025 statement and approximately eleven months after the final approval of the T5 campus, confirm that the T5 approvals were pursued for the affirmative purpose of expanding the Village's revenue base.

41. GPS 2025 further expressly incorporates the 2020 EDC Plan authored by Trustee Vogel, attached hereto as **Exhibit N**, as an operative Village planning document. Page 27 of GPS 2025 states as an action item for Grayslake Central Range Economic Development: "Implement appropriate parts of the Village's economic development plan Meeting the Challenges and Winning the Competition: A Plan for a Growing Grayslake Economy." Prior to the adoption of GPS 2025, the 2020 EDC Plan was an Economic Development Commission recommendation and was not a formally adopted operative Village planning

document. GPS 2025 elevates the 2020 EDC Plan to the status of a document to be implemented as Village policy, confirming its role as the operative institutional framework for the "Grayslake Central Range" designation and for the recruitment of hyperscale non-residential uses at the Central Range.

42. The Village's adoption of GPS 2025 on April 7, 2026, approximately eleven months after the final approval of the T5 campus on May 6, 2025, does not cure the substantive and procedural due process defects of the challenged 2024 to 2025 approvals. At the time of the challenged approvals, the operative comprehensive planning document was the 2005 Plan. The Village's subsequent adoption of a supplement expressly replacing the 2005 Plan's future land use designations, and expressly acknowledging the T5 approval as a *fait accompli*, is a Village admission that the T5 approvals did not fit within the framework of the operative comprehensive planning document at the time of the approvals. The propriety of the challenged approvals under Illinois substantive due process law must be evaluated against the operative planning framework as it existed at the time of the approvals, not against a supplement adopted retroactively to conform Village planning documents to a completed approval.

D. The Approvals Contradict the Village's Sustainability Plan and Wetland Restoration Commitment

43. On or about October 30, 2017, the Village of Grayslake adopted a Sustainability Plan, true and correct copies of pertinent portions of which are attached hereto as Exhibit B, setting forth the Village's policies and commitments regarding climate, energy, land, water, transportation, and economic development through 2027 (the "Sustainability Plan"). The Sustainability Plan is a Village-adopted planning policy document that supplements and operates alongside the 2005 Comprehensive Plan.

44. The Sustainability Plan expressly identifies the Central Range as a Village wetland restoration priority. Among the Village's documented "Initial Village Efforts" under the Land category, the Sustainability Plan lists: ***"Plan for Central Range wetland restoration project"*** and ***"Collaborate with Countryside Landfill to restore Central Range wetland."***

45. The Sustainability Plan further commits the Village to, among other goals: reducing greenhouse gas emissions; maintaining clean and healthful air; reducing energy consumption; advancing renewable energy; and adopting LEED-style sustainability evaluation criteria for non-residential projects.

46. Authorization of an approximately 472-acre, 10.1-million-square-foot industrial campus consuming more than 1 gigawatt of electrical power and operating hundreds of stationary diesel engines on the same parcel the Village has identified for wetland restoration is, on its face, inconsistent with each of the foregoing Sustainability Plan commitments.

47. Upon information and belief, the Village did not apply any LEED-style sustainability evaluation criteria, or any equivalent independent sustainability evaluation, to the T5 application during the

2024 to 2025 approval cycle. The Village's published Approved T5 Data Center Campus FAQ, which addresses noise, water consumption, traffic, air emissions, lighting, and electricity rate effects, does not address wetlands impacts at all. The Village has not publicly explained whether the 2017 wetland restoration commitment was withdrawn, superseded, or set aside in connection with the T5 approvals. No formal amendment of the Sustainability Plan has been adopted by the Village.

E. The Village's Zoning Ordinance Does Not Contain a "Data Center" Use Category

48. The Village's Zoning Ordinance, Chapter 17 of the Village Code, as most recently revised in September 2023, true and correct copies of pertinent portions of which are attached hereto as **Exhibit C**, contains no use category for data centers, hyperscale data centers, or comparable uses. The Zoning Ordinance's enumerated use categories do not include, and do not by any natural reading encompass, a use of the character, scale, and intensity of the T5 campus.

49. The Subject Property is located within the Mixed Use (MX) zoning district. Under the Village's Zoning Ordinance, the MX district permits, as of right, only those uses permitted in the AG (Agricultural) district. Any other use of MX property requires planned development approval expressly authorizing the specific use under the Zoning Ordinance.

50. Upon information and belief, the Village purported to authorize the T5 use by interpreting one or more existing use categories in the Zoning Ordinance to encompass hyperscale data center use. No such interpretation is supported by the text, structure, or evident purpose of the Zoning Ordinance.

F. Mayor Davies's Contemporaneous Statements Regarding the T5 Campus

51. Elizabeth Davies served as a Village Trustee of the Village of Grayslake from approximately 2014 to May 2025. She was sworn in as Mayor of the Village of Grayslake in May 2025, at or in close proximity to the same Village Board meeting at which the final action on the T5 approvals was taken. Ms. Davies has made a series of public statements, both before and after the final approval, that bear on the Village's institutional orientation toward the T5 approvals and the character of the public approval process.

52. On April 22, 2025, approximately two weeks before the Village Board's final approval action on the T5 campus, then-Trustee Davies gave a public interview on the "Discovering Grayslake" YouTube podcast. The interview was recorded before Ms. Davies assumed office as Mayor. The recording remains publicly accessible and Plaintiffs have preserved a copy for the case record. A true and correct transcript of the pertinent portions of the podcast interview is attached hereto as **Exhibit I**.

53. In the April 22, 2025 podcast interview, then-Trustee Davies characterized the T5 development timeline as follows: T5 *"is something that was set in line before Mayor Taylor was mayor . .*

. you know that we've been working on. This is like 20 years advanced." This statement by an incumbent Village Trustee, made prior to the final approval vote, is evidence that the T5 development had been in active preparation within the Village for a period of approximately twenty years prior to the 2024 to 2025 public approval cycle.

54. In the same April 22, 2025 podcast interview, then-Trustee Davies described the T5 use as one that had not been envisioned within the Village's planning framework: *"now we have something going in there that nobody would have ever envisioned, right? [because] you couldn't, right?"* This statement is evidence, from an incumbent Village Trustee, that the T5 use as approved was not within the contemplation of the Village's existing planning framework, including its Comprehensive Plan and its Zoning Ordinance.

55. In the same April 22, 2025 podcast interview, then-Trustee Davies described the Village's Comprehensive Plan and its relationship to the Subject Property as follows: *"we kind of have like a comprehensive plan that kind of has like a hometown Grayslake, you know, so we really protect the home and special so special piece of it. And then that particular place is a little bit removed."* This statement is evidence, from an incumbent Village Trustee, that the Village itself understood the Subject Property to be "removed" from the Comprehensive Plan's operative planning vision.

56. In the same April 22, 2025 podcast interview, then-Trustee Davies described the phased buildout of the T5 campus as follows: *"they have a plan we've approved like 11 of them they have a plan now for 18 maybe 20 of them. So, it's a pretty big deal um what's going down there."* This statement is evidence, from an incumbent Village Trustee, that the Village Board's approvals authorized eleven buildings, while T5's development plan contemplates a total of eighteen to twenty buildings on the campus. Plaintiffs allege upon information and belief that the difference between the buildings approved and the buildings planned reflects the phased structure of the development, under which additional buildings are contemplated for later approval.

57. In the same April 22, 2025 podcast interview, then-Trustee Davies described her posture as the incoming Mayor with respect to communication about pending development matters, as follows: *"I'm going to be extremely cautious when it comes to communication. I have an absolute desire, open heart to share, you know, everything. But . . . I don't want to hurt a potential development if I'm supposed to not say what's going on at that space."* This statement is evidence, from the incoming Mayor, that the Village's public-communication posture with respect to development matters would be characterized by information withholding rather than by transparent disclosure to the public.

58. On August 19, 2025, approximately three and a half months after the Village Board's final approval of the T5 campus on May 6, 2025, Mayor Davies gave a second public interview on the

"Discovering Grayslake" YouTube podcast. A true and correct transcript of the pertinent portions of that interview is attached hereto as **Exhibit R**. During that interview, Mayor Davies discussed the Village's fiscal condition and the sources of Village revenue. Mayor Davies stated, in words and substance, that the Village "actually [does not] have tons of revenue sources or very high revenue sources," and stated: "That can change. We think that central range development will help us with that." Mayor Davies's August 19, 2025 statement, made in her official capacity as Mayor and after the Village had adopted the discretionary approvals of the T5 campus, is a public confirmation that the Village's approval of the Central Range development, including specifically the T5 campus, was pursued for the affirmative purpose of expanding the Village's revenue base.

59. In or about October 2025, following her assumption of office as Mayor, Mayor Davies gave a public statement to the Lake County News-Sun in which she stated that the Village had been "setting the table" for a development like T5 "for years." Taken together with the April 22, 2025 statements, Mayor Davies's public statements before and after the final approval reflect an institutional orientation toward the T5 approvals that pre-dated, and shaped, the 2024 to 2025 public approval process. A true and correct copy of the pertinent Lake County News-Sun article is attached hereto as **Exhibit J**.

60. The Village Board's 2024 to 2025 discretionary approvals of the T5 campus were adopted, upon information and belief, by unanimous votes of the Village Board including the vote of Trustee Shawn M. Vogel. Upon information and belief, Trustee Vogel did not recuse himself from any vote on any of the ordinances or resolutions constituting the T5 approvals. At the time of the T5 approvals, Trustee Vogel had, and continues to have, an institutional history of specific advocacy for the development of what the Village has designated the "Central Range Economic Development Initiative Area," the area within which the Subject Property is located, an advocacy that predated both the T5 application and the public disclosure of the T5 project.

61. In 2020, Trustee Vogel served as Chairman of the Village of Grayslake Economic Development Commission and authored, in that capacity, an economic development plan for the Village entitled "Meeting the Challenges and Winning the Competition: A Plan for a Growing Grayslake Economy" (the "2020 EDC Plan"). A true and correct copy of the 2020 EDC Plan is attached hereto as **Exhibit N**. The 2020 EDC Plan expressly designated an approximately 2,000-acre area located north of Peterson Road and between Midlothian Road and Alleghany Road, denominated by the Plan the "Central Range Economic Development Initiative Area," for "primarily non-residential development." The Subject Property, including the T5 anchor parcel at 30907 N. Alleghany Road, is located within the Central Range Economic Development Initiative Area as so designated. The Plan's top prioritized action item was: "Recruit quality office, light industrial and distribution firms to the Central Range Economic Development Initiative Area and other appropriate sites." The Plan identified as a specific targeted opportunity for recruitment the

"possible recruitment of 'tech type businesses' with high dollar amount and low impact." The Plan further identified as a priority the construction of "South Service Area water/sewer infrastructure to encourage more business locations" within the Central Range. The 2020 EDC Plan reflects an institutional commitment by the Village, formalized four years prior to the T5 application, to accommodate hyperscale non-residential development, including specifically "tech type" development, at the Central Range.

62. On April 9, 2024, approximately three weeks before Defendant T5 Data Centers, LLC publicly announced its acquisition of approximately 160 acres at the Central Range and its intent to develop a hyperscale data center campus, Trustee Vogel gave a public interview on the "Discovering Grayslake" YouTube podcast. A true and correct transcript of the pertinent portions of that interview is attached hereto as **Exhibit Q**. During that interview, Trustee Vogel discussed the Village's water supply infrastructure and its capacity to accommodate large developments at the Central Range. Trustee Vogel stated, in words and substance: "that's how we can bring in like an Alter project, we can bring in Medline, and we can bring in some of those big developments down on the central range is because we have the flow capacity that they need to operate. We don't have to go in and upgrade the pipes. They're already the size they need. So those decisions that were made a long time ago, they predate me." Trustee Vogel's statement, made three weeks before the public announcement of the T5 acquisition, is a specific operational reference by a sitting Village Trustee to "an Alter project" as a concrete near-term expectation at the Central Range and an acknowledgment that Village infrastructure decisions predating the 2024 to 2025 approval cycle had been made specifically to accommodate large-scale non-residential development, including specifically an Alter-connected development, at the Central Range.

63. Trustee Vogel's April 9, 2024 statements were consistent with the position publicly stated eleven days earlier by Village Manager Michael Ellis. On March 29, 2024, in a public interview on the same "Discovering Grayslake" YouTube podcast, Village Manager Ellis discussed the Village's participation in the Central Lake County Joint Action Water Agency and confirmed that the Village's water infrastructure had been comprehensively replaced during the 1990s using general Village funds rather than debt financing and had been sized to accommodate future large-scale development. A true and correct transcript of the pertinent portions of that interview is attached hereto as **Exhibit P**. Village Manager Ellis is the Village's chief administrative officer, has served continuously as Village Manager since 1987, is listed as a member of the Economic Development Commission that authored the 2020 EDC Plan pleaded above, and served in that capacity throughout the 2024 to 2025 T5 approval cycle. Upon information and belief, Village Manager Ellis participated in the administrative preparation of each of the T5 discretionary approvals challenged herein.

64. The pre-positioning pattern described in the paragraphs above was also consistent with the position publicly stated by then-Mayor Rhett Taylor on March 22, 2024, in a public interview on the

"Discovering Grayslake" YouTube podcast, seven days before Village Manager Ellis's interview and approximately seven weeks before the public announcement of the T5 project. A true and correct transcript of the pertinent portions of that interview is attached hereto as **Exhibit Q**. Mayor Taylor served as Mayor of the Village of Grayslake continuously from 2009 through the spring of 2025, a tenure encompassing the period during which Trustee Vogel authored and the Village considered the 2020 EDC Plan, the period during which the Village Board considered and adopted a substantial portion of the T5 discretionary approvals challenged herein, and the period immediately preceding the public announcement of the T5 project. In his March 22, 2024 interview, Mayor Taylor referred to the area within which the Subject Property is located as "our central range where Medline is and Okabe and FedEx" and characterized the Central Range as the Village's "commercial center" where "investment is all centralized down there." Mayor Taylor further characterized large-scale Village projects as requiring "institutional memory" spanning "twenty some years" and characterized his own long tenure as Mayor as a source of that institutional memory. Mayor Taylor's public confirmation, spoken in his official capacity approximately seven weeks before the public announcement of the T5 project, that the Central Range was an operative and continuing Village "commercial center" with institutional investment corroborates the pre-positioning pattern documented in the preceding paragraphs.

65. Trustee Vogel's April 9, 2024 podcast statements and the 2020 EDC Plan authored by Trustee Vogel, considered together with the March 22, 2024 statements by then-Mayor Taylor, the March 29, 2024 statements by Village Manager Ellis, and Mayor Davies's April 22, 2025 podcast interview, August 19, 2025 podcast interview, and October 2025 statement to the Lake County News-Sun as pleaded in the paragraphs above, establish an institutional pattern by which the Village of Grayslake pre-positioned itself over a period of years to accommodate large-scale non-residential development at the Central Range for the purpose of expanding the Village's revenue base, including specifically an "Alter project" identified by a sitting Trustee three weeks before the public announcement of T5's acquisition. The 2024 to 2025 discretionary approvals of the T5 campus were, on the pleaded record, the culmination of that multi-year, multi-official pre-positioning rather than a reasoned, disinterested application of the Village's operative planning framework to a specific project properly considered on the public record.

66. On or about May 20, 2026, more than one year after the Village Board's final approval of the T5 campus on May 6, 2025, Defendant T5 Data Centers, LLC, through its engineering consultant Christopher B. Burke Engineering, Ltd. of Rosemont, Illinois, prepared and, upon information and belief, submitted to the United States Army Corps of Engineers an assessment report titled "Wetland and Waters of the U.S. Assessment Report, T5 Data Centers, Grayslake, Lake County, IL" (the "Burke Report") in support of Defendant T5 Data Centers, LLC's application for a federal individual permit for the T5 campus. A true and correct copy of the Burke Report is attached hereto as **Exhibit T**. In the Site Selection Factors section of the Burke Report, Defendant T5 Data Centers, LLC represents to the United States Army Corps

of Engineers through its engineering consultant that: "Grayslake strongly supports business growth and the project and has a stable political environment. There is broad community acceptance of the project."

67. Contrary to Defendant T5 Data Centers, LLC's representation of "broad community acceptance" of the T5 campus, at the time of the Burke Report and continuing to the date of the filing of this Complaint, the response of the affected community to the T5 campus has been documented, organized, and public opposition. Publicly documented indicia of community opposition to the T5 campus include, without limitation: (a) six or more public online petitions on the Change.org platform opposing various aspects of the T5 campus, including petitions entitled "Halt further construction of the T5@Chicago IV data center," "Stop data center construction in Grayslake, Illinois," "Require local mitigation of wetland loss from Grayslake's T5 Data Center," "Stop data centers in Lake County," "Eliminate data centers in Lake County," and "Request Mundelein to sue Grayslake over T5 data center"; (b) the formation of Plaintiff Preservation of Community Well-being Collective LLC as an Illinois limited liability company for the purpose of representing residents affected by and opposed to the T5 campus; (c) the retention of undersigned counsel and the preparation and filing of this Complaint on behalf of the plaintiffs identified in the caption; and (d) the residency of individual Plaintiffs in the Villages of Grayslake, Mundelein, and Round Lake Park, together with the existence of a public petition specifically requesting Village of Mundelein action against the T5 campus, establishing that community opposition to the T5 campus extends beyond the Village of Grayslake to residents of adjacent communities directly affected by the campus's impacts.

68. The Burke Report further contains statements by Defendant T5 Data Centers, LLC that corroborate the multi-decade institutional pre-positioning of the T5 campus site pleaded in the paragraphs above. The Burke Report acknowledges: (a) that "This site was presented to T5 by ComEd as being at a strategic location on their grid for a data center campus," establishing that ComEd, and not T5, identified the T5 campus site, consistent with Trustee Vogel's April 9, 2024 podcast statements pleaded above regarding the pre-sized capacity of Village water and utility infrastructure at the Central Range; (b) that "This portion of Lake County/Grayslake has been slated for commercial/Industrial/Residential use for more than 50 years," consistent with the multi-generational institutional pre-positioning pleaded above; and (c) that "The previous landowner was a developer who purchased this and other adjoining properties many years ago with the intent to develop at some time. These properties were farmed by tenants in the interim." Upon information and belief, the "previous landowner" referenced in the Burke Report is or includes Defendant Alter Asset Management Company or an affiliated Alter entity, thereby further corroborating the pre-positioning of the T5 campus site over multiple decades in anticipation of eventual large-scale non-residential development.

69. The Burke Report is dated May 20, 2026, more than one year after the Village Board's final approval of the T5 campus on May 6, 2025. Upon information and belief, the federal environmental

and wetland review of the T5 campus, including the federal individual permit application referenced in the Burke Report, remained pending as of the filing of this Complaint. The Village Board's discretionary approvals of the T5 campus therefore preceded the substantial completion of federal environmental review by more than one year, and the Village Board approved the T5 campus without the benefit of, and without requiring the completion of, the federal environmental review referenced in the Burke Report.

70. The Burke Report's representation of "broad community acceptance" of the T5 campus, when considered together with the documented and organized community opposition described above and the pre-positioning admissions contained in the Burke Report itself, is further evidence that the T5 campus was, from its earliest stages through the pending federal permit process, developed and represented through a course of conduct that consistently minimized or disregarded the presence and character of community opposition and that lacked the transparency and factual accuracy required in decisions affecting the fundamental character of the affected communities.

G. Notice, Open-Session, and Personal-Account Failures

71. Plaintiffs have obtained and reviewed the published agenda for each of the meetings at which the ordinances, special use permit approvals, and plats of subdivision comprising the T5 approvals were recommended for approval or adopted: the September 23, 2024 special meeting of the Plan Commission/Zoning Board of Appeals, at which the initial public hearings were held; the November 19, 2024 Village Board meeting, at which Ordinances 2024-0-37 and 2024-0-38 were adopted; the January 13, 2025 meeting of the Plan Commission/Zoning Board of Appeals; the February 18, 2025 Village Board meeting, at which Ordinances 2025-0-05 and 2025-0-06 were adopted; the April 14, 2025 meeting of the Plan Commission/Zoning Board of Appeals; and the May 6, 2025 Village Board meeting, at which Ordinance 2025-0-21 was adopted. On every one of those published agendas before the final agenda of May 6, 2025, the agenda item descriptions identified the project only by the applicant-selected designations "T5@Chicago IV," "T5@CHICAGO IV PHASE 2," "T5@CHICAGO IV PHASE 3," or "T5@CHICAGO V," or by the name of the underlying planned unit development, the "Cornerstone PUD," without disclosing that the project would in fact be a hyperscale data center campus. By way of example: the agenda for the September 23, 2024 special meeting described the matters as an amendment to the general development plan for the "Cornerstone PUD" and a special use permit for a planned unit development on "90 acres of land generally located on Peterson Road," without using the words "data center"; and the agenda for the April 14, 2025 meeting identified the matters as "T5@CHICAGO IV PHASE 3" and the "Cornerstone PUD," without using the words "data center." Those designations, standing alone, provide no substantive description of the actual character, scale, environmental impacts, or resource demands of the proposed development, and would not permit a reasonable member of the public reading the agendas to understand the character or magnitude of the project being considered. Plaintiffs have further obtained and reviewed the published agendas for every regular meeting of the Village Board from September 2024 through May

6, 2025, and for the special Village Board meetings of October 19, 2024 and March 11, 2025; no agenda item description on any of those agendas used the words "data center" before the agenda for the May 6, 2025 meeting.

72. The published agenda for the November 19, 2024 Village Board meeting also omitted an entire substantive T5 item. The published agenda for that meeting listed eight numbered items and contained no presentation item of any kind. The approved minutes of the same meeting, however, record as item 5 a "PRESENTATION: T5," at which a representative from T5 "made a presentation regarding the proposed data center projects in the Cornerstone Business Park and an adjoining property," and renumber the ordinance items accordingly. The Village Board thus received a substantive presentation regarding the data center character of the T5 project at a public meeting for which the published agenda gave no notice that any such presentation would occur.

73. In contrast to its agenda item descriptions, the Village's own internal budget documents described the project by its true character. From at least November 2024, the Village's Treasurer's Reports, presented among the Village's bills payable materials, carried a line item designated "T5 DATA CENTER CAMPUS." The Village accordingly knew, and internally recorded in its own financial documents, that the project was a data center campus during the same period in which the agenda item descriptions on its published agendas and notices identified the project only as "T5@Chicago IV" or the "Cornerstone PUD." For the avoidance of doubt, Plaintiffs do not allege that the words "data center" never appeared in any Village document during the approval cycle. Plaintiffs allege that the agenda item descriptions, which are the portion of the Village's public materials upon which a member of the public reasonably relies in determining whether a matter of concern will be taken up at a public meeting, did not disclose the data center character of the project.

74. The Village's own budget minutes further confirm the Board's undisclosed engagement with the data center project. The minutes of the special Village Board meeting held March 15, 2025, the Village's annual budget meeting, record that, "per the Board's fall discussion, a limited amount of data center electricity tax revenues are included starting in FY 28/29," and that Mayor Taylor "directed the Board to information on possible data center electricity tax revenue noting that, per the Board's direction, that potential revenues from this source be handled, for the most part, outside the Village's regular operating/capital financial planning." The Village Board thus held a "fall discussion" of data center revenues in the fall of 2024, and gave direction that such revenues be handled largely outside the Village's regular financial planning, during the pendency of the T5 approvals. No agenda item description on any published agenda of the Village Board for any regular or special meeting in the fall of 2024 disclosed that data center revenues, or any other data center matter, would be discussed.

75. Upon information and belief, from the earliest published agenda item referencing the T5 project through the substantial completion of the Village Board's discretionary approvals, no agenda item description on any published agenda of the Village Board or the Plan Commission/Zoning Board of Appeals disclosed that the T5 project was a hyperscale data center until the agenda for the May 6, 2025 Village Board meeting, the final agenda in the approval sequence, which for the first time described the pertinent matters as an "addition to the T5 Data Center campus" and a final plat for the "T5@Chicago IV data center campus," by which time all of the discretionary approvals had been substantially resolved. The use of applicant-selected and project code-name designations in the Village's agenda item descriptions, in place of a substantive description of the actual nature of the project, undermined the informed public participation contemplated by the Illinois Open Meetings Act, 5 ILCS 120/1 et seq., and required by Illinois substantive and procedural due process law for discretionary land use approvals of this magnitude and character. Members of the public who might have wished to participate in the Village Board's consideration of a hyperscale data center campus could not identify the T5 project as such from the agenda item descriptions on the published agendas of the Village Board and the Plan Commission/Zoning Board of Appeals prior to the final agenda in the approval sequence.

76. Upon information and belief, the Village Board of the Village of Grayslake conducted closed (Executive) sessions during the 2024 to 2025 approval cycle, including the closed sessions reflected on the Village's Agendas and Minutes index for May 6, 2025 (the night of the final approval action) and June 17, 2025.

77. The Illinois Open Meetings Act, 5 ILCS 120/2(c), permits a public body to hold a closed session only for one or more of twenty-two specifically enumerated exceptions, narrowly construed. The exceptions do not include negotiation of development agreement terms with private developers, deliberation regarding the substance of discretionary land-use approvals, or coordination among Trustees of a contemplated public vote.

78. Upon information and belief, one or more material terms of the development agreement(s) between the Village and Defendant T5 Data Centers, LLC, and one or more material aspects of the discretionary approvals themselves, were negotiated, deliberated upon, or effectively decided in closed session, in violation of the Open Meetings Act.

79. The Village's published Annual Report for Fiscal Year 2024-2025, together with each Mayor's and Trustee's individual official webpage on the Village website at villageofgrayslake.com, list, as the official contact email address for each member of the Village Board, a personal Gmail account. True and correct copies of screenshots of the pertinent Village website pages displaying the personal Gmail addresses for the Mayor and each Trustee are attached hereto as **Exhibit K**. By way of example and not limitation: the Village's listed contact email for Mayor Davies is grayslakemayordavies@gmail.com; for

Trustee Kevin D. Waldenstrom is grayslaketrusteewaldenstrom@gmail.com; for Trustee Lalena Zoe Magnetta is grayslaketrusteemagnetta@gmail.com; for Trustee Pradip Pete Sahu is grayslaketrusteesahu@gmail.com; for Trustee William Kornit is grayslaketrusteekornit@gmail.com; for Trustee Shawn M. Vogel is grayslaketrusteevogel@gmail.com; and for Trustee Nano Engdahl is grayslaketrusteeengdahl@gmail.com.

80. Upon information and belief, the Mayor, Trustees, and other Village officials and staff have routinely conducted Village business, including communications relating to the T5 approvals, through these personal email accounts and other personal devices and platforms.

81. Communications among members of a public body relating to public business, conducted outside of properly noticed and conducted open meetings, may constitute serial communications in violation of the Open Meetings Act if such communications effectively decide matters that should have been deliberated in open session. Communications conducted on personal accounts relating to public business also remain public records subject to the Illinois Freedom of Information Act, 5 ILCS 140/1 et seq., and to the Illinois Local Records Act, 50 ILCS 205/1 et seq. Upon information and belief, members of the Village Board and other Village officials engaged in serial communications relating to the T5 approvals.

H. State and County Regulatory Review Context

82. As additional factual context bearing on the Village's failure to develop an adequate record before granting the discretionary approvals, Plaintiffs allege the following regarding the state and county regulatory review processes applicable to the Subject Property. Plaintiffs assert no federal cause of action and seek no relief conditioned on the outcome of any federal regulatory process.

83. The Subject Property contains wetlands and other water features that are, upon information and belief, subject to state and county regulatory review processes that remained active and unresolved as of the Village's discretionary approvals. Upon information and belief, wetlands on or near the Subject Property are the subject of ongoing regulatory review coordinated between and among state agencies, county agencies, and the Lake County Stormwater Management Commission.

84. The Lake County Stormwater Management Commission administers the Lake County Watershed Development Ordinance, which regulates wetland impacts at the county level. Upon information and belief, the Lake County Stormwater Management Commission is actively reviewing the T5 campus's wetlands and stormwater impacts and had not completed that review at the time the Village issued the discretionary approvals challenged herein.

85. The Illinois Environmental Protection Agency has independent permitting authority over the T5 campus's air emissions and water quality impacts. Upon information and belief, the Illinois EPA's review of the campus's environmental impacts remains active.

86. The Village's discretionary approvals were granted before the state and county regulatory review processes described above had been completed, on a record that the Village itself failed to develop. The Village commissioned no independent third-party study of wetland impacts, water withdrawal impacts, stormwater impacts, air emissions impacts, or noise impacts as part of its approval process. The Village made no findings on any of those subjects supported by independent evidence. The Village's failure to develop such a record is a matter of Village conduct, evaluable under Illinois state-law standards, and does not depend on any federal regulatory determination.

I. Harm to Plaintiffs

87. Plaintiff Suzanne P. Williams, Plaintiff Robin A. Weller, Plaintiff Pamela A. Hermon, Plaintiff Marion L. Eickhoff, Plaintiff Gabriela U. Appelt, Plaintiff Mary Anne Fortmann, and Plaintiff Robert C. Baum own residential real property, or hold a residential interest in property, in close proximity to the Subject Property, as further described in the Parties section above. Plaintiffs Cheryl Feddor and Gavin Rychener own residential real property in central Grayslake that, as described in the Parties section above, has already experienced the physical installation of utility infrastructure undertaken, upon information and belief, to serve the T5 campus. The campus footprint extends into the boundaries of taxing districts that include parts of the Village of Mundelein (specifically, Mundelein High School District 120) and the Village of Round Lake Park (specifically, the Round Lake Area Park District), as the Village's own publications confirm. The full list of affected taxing districts, as identified in the Village's Approved T5 Data Center Campus FAQ, includes the Village of Grayslake, Grayslake Community High School District 127, the Grayslake Fire Protection District, the Grayslake Park District, the Round Lake Area Park District, Fremont Elementary School District 79, Mundelein High School District 120, and the Fremont Library District.

88. If the campus is built as approved, Plaintiffs and their properties will suffer particularized harms distinct from those experienced by the general public, including without limitation: (a) sustained mechanical hum, infrasound, and other noise emissions from cooling systems and stationary diesel engines; (b) elevated diesel particulate matter, nitrogen oxide, and other air emissions, with particular consequence to Plaintiffs (including without limitation Ms. Williams) who have pre-existing respiratory conditions that render them more susceptible to air-quality impacts; (c) disturbance of private groundwater supplies drawn from wells, including Ms. Williams's well, as a result of the campus's water withdrawal, wastewater discharge, stormwater runoff, and wetlands impact activity; (d) light trespass and night-sky degradation; (e) reduction in residential property values, with particular consequence to Plaintiffs whose homes are titled

in a manner (including as manufactured homes in land-lease communities) that makes property values especially sensitive to nearby industrial development; (f) increased fire, hazardous-materials, and emergency-services risk; (g) prolonged construction-related disruption over a multi-year buildout extending from 2027 through 2029 or later; and (h) loss of enjoyment of residential and natural surroundings, including the loss of the wetland restoration the Village itself had previously committed to undertake on the Subject Property.

89. Plaintiffs have no adequate remedy at law. Money damages cannot make Plaintiffs whole for the loss of residential quality of life, the loss of natural features the Village had committed to restore, or the disruption of the Village's own adopted policies regarding land use and sustainability. Injunctive and declaratory relief are necessary and appropriate.

J. Limitations Framework, Section 11-13-25, and Fee-Recovery Framework

90. Plaintiffs anticipate that Defendants will assert Section 11-13-25 of the Illinois Municipal Code, 65 ILCS 5/11-13-25, as a limitations defense. Plaintiffs allege the following in anticipation of and response to that defense.

91. Section 11-13-25 imposes a ninety-day limitations period on actions seeking judicial review of "a special use, variance, rezoning, or other amendment to a zoning ordinance." Plaintiffs do not seek administrative review of a zoning amendment in this action. Plaintiffs instead seek: (1) declaratory relief that the use authorized by the Village is not within any defined category of the Village's Zoning Ordinance and that no valid amendment authorizing such use was ever properly adopted; (2) constitutional relief on substantive and procedural due process grounds under the Illinois Constitution; and (3) statutory relief for violation of the Illinois Open Meetings Act. None of these claims is foreclosed by Section 11-13-25.

92. To the extent any Defendant asserts that Section 11-13-25 forecloses the constitutional, statutory, or declaratory claims asserted in this Complaint, Plaintiffs allege that any such construction of Section 11-13-25 would violate the separation of powers provisions of Article II, Section 1 of the Illinois Constitution and the due process provisions of Article I, Section 2 of the Illinois Constitution, by extinguishing independent constitutional and statutory causes of action through a procedural limitations device. Plaintiffs reserve the right to brief the separation-of-powers and due process arguments fully in response to any motion to dismiss invoking Section 11-13-25.

93. Each new building permit, site development permit, or similar discretionary action by the Village in reliance on the 2024 to 2025 approvals creates a fresh cause of action under Section 11-13-15 of the Illinois Municipal Code, 65 ILCS 5/11-13-15, with its own limitations period running from the date of the permit. Plaintiffs reserve the right to bring a separate action under Section 11-13-15, including for

declaratory, injunctive, or mandamus relief enforcing any specific conditions of the development agreements or the underlying approvals, if and when any specific building permit issues, any site work commences, or any specific condition is breached.

94. Plaintiffs seek recovery of attorneys' fees and costs on multiple bases. First, with respect to Count IV, the Illinois Open Meetings Act expressly authorizes fee recovery: the court "may assess against any party, except a State's Attorney, reasonable attorney's fees and other litigation costs reasonably incurred by any other party who substantially prevails in any action brought in accordance with" Section 3 of the Act. 5 ILCS 120/3(d). Second, with respect to Counts I, II, and III, Plaintiffs seek fee recovery pursuant to this Court's inherent equitable jurisdiction and the common-law substantial-benefit doctrine on the ground that the relief sought will confer a substantial benefit on a class of Village residents and property owners beyond Plaintiffs themselves, including the residents of the Saddlebrook Farms community, the residents of the adjacent communities of Mundelein and Round Lake Park, and the taxpayers of the affected school, park, fire protection, and library districts. Third, Plaintiffs reserve the right to seek fee-shifting sanctions under Illinois Supreme Court Rule 137 for any pleading, motion, or other document filed by any Defendant that is not well grounded in fact or law or is interposed for an improper purpose.

COUNT I

Ultra Vires Municipal Action; Declaratory Judgment

(Hyperscale Data Center Use Not Within Any Defined Category of the Zoning Ordinance)
(Against All Defendants)

95. Plaintiffs incorporate by reference each preceding paragraph of this Complaint as though fully set forth herein.

96. Under Illinois law, a municipal corporation has only such powers as are expressly granted to it by the General Assembly, or as may be necessarily implied from those expressly granted. A municipality acts in excess of its authority when it authorizes a land use that is not within any category enumerated in its own zoning ordinance, in the absence of a properly adopted amendment to that ordinance.

97. Pursuant to the Illinois Declaratory Judgment Act, 735 ILCS 5/2-701, this Court is empowered to make binding declarations of rights and to grant such other relief as may be necessary and proper, where the case presents an actual controversy and the party seeking declaratory relief has a tangible legal interest in the controversy.

98. An actual controversy exists between Plaintiffs and Defendants regarding whether the Village of Grayslake's Zoning Ordinance, as in effect at all times relevant to this action, lawfully authorizes the development of a hyperscale data center campus on the Subject Property.

99. Plaintiffs have a tangible legal interest in the controversy by virtue of their ownership of, and residential interest in, nearby residential real property and the particularized harms identified above.

100. The Village's Zoning Ordinance does not contain a "data center" use category or any reasonably analogous category. The Subject Property is located within the Mixed Use (MX) zoning district. The MX district permits development as of right only under the regulations applicable to the AG (Agricultural) district; any other use of MX property requires planned development approval expressly authorizing the use under the Zoning Ordinance.

101. Upon information and belief, the Village authorized the T5 campus by interpreting one or more existing use categories in the Zoning Ordinance to encompass hyperscale data center use. No such interpretation is supported by the text, structure, or evident purpose of the Zoning Ordinance, which contains no provisions regulating the unique characteristics of hyperscale data center operations. Then-Trustee Davies acknowledged as much in her April 22, 2025 podcast interview, characterizing the T5 use as one that "nobody would have ever envisioned."

102. The Village's interpretation of its Zoning Ordinance to authorize the T5 use exceeds the Village's lawful authority, is arbitrary, and is contrary to the plain text and structure of the Zoning Ordinance. Any building permits issued by the Village in reliance on such interpretation are void as a matter of law because they are not authorized by the Zoning Ordinance.

WHEREFORE, Plaintiffs respectfully request that this Court enter judgment in their favor and against Defendants on Count I, and grant the following relief:

- a. A declaration that hyperscale data center use is not within any defined use category of the Village's Zoning Ordinance and was not lawfully authorized by the 2024 to 2025 approvals;
- b. A declaration that any building permits, site development permits, or other permits issued by the Village in reliance on its interpretation of the Zoning Ordinance to encompass hyperscale data center use are void;
- c. A permanent injunction prohibiting the Village from issuing any further such permits in the absence of a properly noticed, properly conducted amendment of the Zoning Ordinance to authorize hyperscale data center use;
- d. An award of attorneys' fees and costs pursuant to this Court's inherent equitable jurisdiction and the common-law substantial-benefit doctrine, on the ground that the relief sought confers a substantial benefit on a class of Village residents and property owners beyond Plaintiffs themselves;
- e. Costs of suit and such other and further relief as this Court deems just and proper.

COUNT II

Substantive Due Process Violation Under the Illinois Constitution

(Against Defendant Village of Grayslake)

103. Plaintiffs incorporate by reference each preceding paragraph of this Complaint as though fully set forth herein.

104. Article I, Section 2 of the Illinois Constitution provides that no person shall be deprived of life, liberty, or property without due process of law.

105. The Illinois Supreme Court has held, in *La Salle National Bank v. County of Cook*, 12 Ill. 2d 40 (1957), *Sinclair Pipe Line Co. v. Village of Richton Park*, 19 Ill. 2d 370 (1960), and *City of Elgin v. County of Cook*, 169 Ill. 2d 53 (1995), that a municipal zoning decision violates substantive due process where it is arbitrary, capricious, or unreasonable, applying a nine-factor balancing test.

106. The nine factors articulated in *City of Elgin* are: (1) the existing uses and zoning of nearby property; (2) the extent to which property values are diminished by the challenged ordinance; (3) the extent to which the destruction of property values promotes the health, safety, morals, and general welfare of the public; (4) the relative gain to the public compared to the hardship imposed on the individual property owner; (5) the suitability of the subject property for the zoned purposes; (6) the length of time the property has been vacant as zoned; (7) whether the community has a comprehensive land-use plan; (8) whether the challenged ordinance is consistent with that plan; and (9) the evidence (or absence thereof) of community need for the proposed use.

107. Application of the nine factors to the 2024 to 2025 approvals demonstrates that the approvals are arbitrary, capricious, and unreasonable as applied to Plaintiffs' properties:

Factor 1: The Subject Property is surrounded by residential neighborhoods in Grayslake, Mundelein, and Round Lake Park, with no comparable hyperscale industrial development in the vicinity. Plaintiffs Suzanne P. Williams, Robin A. Weller, Pamela A. Hermon, Marion L. Eickhoff, and Gabriela U. Appelt reside in Saddlebrook Farms, a residential community located within the corporate limits of the Village of Round Lake Park by strip annexation and bearing a Grayslake mailing address directly across Alleghany Road from the Subject Property in its adjacent portions and extending back approximately 1.6 miles or more from the Subject Property in its interior, with Ms. Eickhoff's home located within approximately one-half mile of the Subject Property. Plaintiff Robert C. Baum holds, as heir to his late parents' estate currently in probate, a one-half (1/2) beneficial interest in the residential property located at 31265 N. Alleghany Road, Grayslake, Illinois, less than 500 yards from the Subject Property and located on the same road as, and in

immediate proximity to, the T5 anchor parcel at 30907 N. Alleghany Road. Plaintiff Mary Anne Fortmann has, for more than thirty years, resided at 33000 N. Forest Drive, Grayslake, Illinois, in the Arbor Vista subdivision, on an approximately one-acre lot located approximately two miles from the Subject Property that Ms. Fortmann has cultivated as wildlife habitat.

Factor 2: The construction and operation of a hyperscale data center campus will materially diminish the residential property values of Plaintiffs and similarly situated property owners due to noise, air emissions, light trespass, visual industrial scale, and the prolonged disruption of construction. These effects are amplified for Plaintiffs living in age-restricted, land-lease communities like Saddlebrook Farms, where home values are particularly sensitive to the character of surrounding land uses.

Factor 3: The destruction of residential property values, the concentration of stationary diesel engines in close proximity to homes, the placement of the largest industrial facility in Lake County history within a region of suburban residential character, and the conversion of an identified wetland restoration site to industrial use do not promote public health, safety, morals, or general welfare. They detract from each. The location of a diesel-intensive industrial campus adjacent to a senior residential community, where Plaintiff Suzanne P. Williams and others live with pre-existing respiratory conditions, is in particular incompatible with the promotion of public health.

Factor 4: The Village's own published estimates project up to 1,680 permanent jobs at full buildout, while Mayor Davies has publicly stated approximately 1,500 permanent positions, against a private capital investment estimated by Mayor Davies at \$8.5 billion and by T5 CEO Pete Marin at \$12 billion to \$18 billion. The proportionate public benefit to the Village and its residents, weighed against the substantial and particularized hardship to Plaintiffs and other nearby property owners, is grossly imbalanced.

Factor 5: The Subject Property is suitable for a wide range of less intensive uses, including the residential, retail, light industrial, and office uses contemplated by the 2009 Cornerstone PUD and the 2005 Comprehensive Plan, and for the wetland restoration contemplated by the 2017 Sustainability Plan. It is not uniquely suited for hyperscale industrial use.

Factor 6: The Subject Property has been substantially developed as part of the Cornerstone PUD since 2009 and is not properly characterized as vacant or undevelopable under prior zoning.

Factor 7: The Village has a comprehensive plan, adopted in 2005. The Village has supplemented that comprehensive plan with a 2017 Sustainability Plan that operates as additional adopted

planning policy. The Village has been on notice for two decades of the planning framework applicable to the Subject Property.

Factor 8: The challenged approvals are inconsistent with both adopted planning documents. They are inconsistent with the 2005 Comprehensive Plan, which describes the Central Range Subarea as appropriate for "light industrial/office use," not for hyperscale industrial development. They are inconsistent with the Village's 2017 Sustainability Plan, which identifies the Subject Property as a wetland restoration priority and commits the Village to reducing greenhouse gas emissions, reducing energy consumption, advancing renewable energy, and applying LEED-style sustainability evaluation criteria to non-residential projects. The Village has not amended either document to authorize the T5 use, and the Village's published Approved T5 Data Center Campus FAQ does not even address the wetland restoration commitment. Then-Trustee Davies acknowledged in her April 22, 2025 podcast interview that the Subject Property is "a little bit removed" from the Comprehensive Plan's operative planning vision. That acknowledgment from an incumbent Village Trustee is direct evidence of Factor 8 inconsistency.

Factor 9: The Village has not demonstrated, on the public record of the 2024 to 2025 approval cycle, any community need for hyperscale data center use specifically located within Grayslake's residential southern corridor. The Village's published Approved T5 Data Center Campus FAQ asserts community benefits but does not cite any independent third-party study substantiating community need or proportionate benefit. The Village commissioned no independent evaluation of the community need, community cost, or comparative alternatives assessment that the scale of the approvals warranted. State and county regulatory processes concerning the campus's wetlands, water, and air impacts had not been completed at the time of the Village's approvals, and their determinations were not before the Village when it granted the discretionary approvals under review.

108. The *Sinclair Pipe Line* gloss on the *La Salle* test, requiring consideration of the care with which the community has undertaken to plan its land use development, weighs heavily against the Village. The Village relied upon a twenty-year-old comprehensive plan; failed to update that plan before authorizing a development of unprecedented scale and character; proceeded in the face of its own contradictory Sustainability Plan; failed to update either plan to reflect the T5 approvals; and approved the project on a record inadequate to support the discretionary approvals under Illinois state-law standards. The Village's institutional orientation toward the T5 approvals was, in then-Trustee Davies's contemporaneous description, "20 years advanced," reflecting long institutional preparation rather than deliberative response to a specific application evaluated on its merits within the Village's operative planning framework.

109. Taken together, the nine factors and the Sinclair Pipe Line gloss demonstrate that the 2024 to 2025 approvals are arbitrary, capricious, and unreasonable as applied to Plaintiffs' properties, and constitute a violation of the substantive due process protections of Article I, Section 2 of the Illinois Constitution.

WHEREFORE, Plaintiffs respectfully request that this Court enter judgment in their favor and against Defendant Village of Grayslake on Count II, and grant the following relief:

- a. A declaration that the 2024 to 2025 approvals violate the substantive due process protections of Article I, Section 2 of the Illinois Constitution as applied to Plaintiffs' properties;
- b. A declaration that the 2024 to 2025 approvals are inconsistent with the Village's own 2005 Comprehensive Plan and 2017 Sustainability Plan, including the Village's wetland restoration commitment for the Central Range, and that those inconsistencies support the substantive due process violation;
- c. A judgment vacating and setting aside the 2024 to 2025 approvals;
- d. A permanent injunction prohibiting the Village from issuing any building permits, site development permits, or other approvals to Defendants T5 Data Centers, LLC or its affiliates in reliance on the 2024 to 2025 approvals;
- e. An award of attorneys' fees and costs pursuant to this Court's inherent equitable jurisdiction and the common-law substantial-benefit doctrine, on the ground that the relief sought confers a substantial benefit on a class of Village residents and property owners beyond Plaintiffs themselves;
- f. Costs of suit and such other and further relief as this Court deems just and proper.

COUNT III

Procedural Due Process Violation Under the Illinois Constitution

(Against Defendant Village of Grayslake)

110. Plaintiffs incorporate by reference each preceding paragraph of this Complaint as though fully set forth herein.

111. The Illinois Supreme Court has held, in *People ex rel. Klaeren v. Village of Lisle*, 202 Ill. 2d 164 (2002), that a municipal body acts in a quasi-judicial capacity when conducting hearings on a special use permit application, and that interested parties at such hearings are entitled to fundamentally fair procedures, including the right to cross-examine adverse witnesses. As incidents of a quasi-judicial

proceeding, such hearings likewise require a meaningful opportunity to present evidence, an impartial decisionmaker, and a decision supported by an adequate record.

112. Subsequent Illinois decisions have extended the fairness principles of *Klaeren* to planned development modifications, particularly where (as here, upon information and belief) the planned development action incorporates a special-use component within the same proceedings.

113. Upon information and belief, the 2024 to 2025 approval cycle included one or more proceedings subject to *Klaeren*'s procedural due process requirements.

114. Upon information and belief, those proceedings did not satisfy *Klaeren*'s requirements in one or more of the following respects: (a) objectors were denied a meaningful opportunity to cross-examine the developer's witnesses; (b) speaking time and procedural opportunities were limited in ways inconsistent with a quasi-judicial proceeding; (c) the Village did not commission or rely upon independent third-party studies regarding the relevant categories of impact; (d) the Village did not apply any LEED-style sustainability evaluation criteria as required by its own 2017 Sustainability Plan; and (e) the resulting record was inadequate to support discretionary land-use approvals of this magnitude. The perfunctory character of the Village's hearing practice is illustrated by the September 9, 2024 Cornerstone hearing described above, which was opened at 6:02 p.m. and closed at 6:03 p.m. with no public comment.

115. The absence of any independent third-party study cited in or attached to the Village's own published Approved T5 Data Center Campus FAQ regarding noise, air emissions, traffic, water consumption, fire suppression demands, or cumulative public-health impacts is evidence that the record before the Village was inadequate. That inadequacy is compounded by the Village's blanket assertion, in its June 16, 2026 response to Plaintiffs' Freedom of Information Act request (a true and correct copy of which is attached hereto as **Exhibit L**), that every category of staff report, consultant study, and expert material underlying the approvals was prepared "in anticipation of litigation," a characterization that either concedes the Village anticipated litigation from the beginning of the process or, if untrue, reflects an effort to shield the record from scrutiny. Either alternative undermines the adequacy of the record.

116. Mayor Davies's statements, both before and after the final approval, are circumstantial evidence supporting the impartiality element of Plaintiffs' procedural due process claim. In her April 22, 2025 podcast interview, then-Trustee Davies described the T5 development as "20 years advanced," the T5 use as one that "nobody would have ever envisioned," the Subject Property as "a little bit removed" from the Comprehensive Plan's vision, the T5 development plan as involving eighteen to twenty buildings when the Board had approved only eleven, and her own incoming communication posture as one of "extreme caution" reflecting a desire not to "hurt a potential development." Following the final approval, in or about October 2025, Mayor Davies stated publicly that the Village had been "setting the table" for a development

like T5 "for years." These statements, made by the incumbent Trustee and incoming Mayor before the final vote, and by the sitting Mayor after the final vote, together with the accelerated procedural timing of the final approval action at the same Village Board meeting at which Ms. Davies was sworn in as Mayor, are evidence that the 2024 to 2025 approvals were the product of long institutional preparation rather than the deliberative product of the 2024 to 2025 public hearings.

117. These procedural failures, individually and collectively, constitute violations of the procedural due process protections of Article I, Section 2 of the Illinois Constitution and the common-law fair-hearing requirements of *Klaeren* and its progeny.

WHEREFORE, Plaintiffs respectfully request that this Court enter judgment in their favor and against Defendant Village of Grayslake on Count III, and grant the following relief:

- a. A declaration that the 2024 to 2025 approvals were obtained in violation of procedural due process and the fair-hearing requirements of *Klaeren*;
- b. A judgment vacating and setting aside the 2024 to 2025 approvals and remanding the matter to the Village for properly noticed, properly conducted hearings in accordance with *Klaeren* and Illinois procedural due process;
- c. A permanent injunction prohibiting the Village from issuing any building permits, site development permits, or other approvals to Defendants T5 Data Centers, LLC or its affiliates pending the conclusion of remanded proceedings;
- d. An award of attorneys' fees and costs pursuant to this Court's inherent equitable jurisdiction and the common-law substantial-benefit doctrine, on the ground that the relief sought confers a substantial benefit on a class of Village residents and property owners beyond Plaintiffs themselves;
- e. Costs of suit and such other and further relief as this Court deems just and proper.

COUNT IV

Violation of the Illinois Open Meetings Act

(Against Defendants Village of Grayslake and T5 Data Centers, LLC)

118. Plaintiffs incorporate by reference each preceding paragraph of this Complaint as though fully set forth herein.

119. The Illinois Open Meetings Act, 5 ILCS 120/1 et seq., requires that meetings of public bodies be open to the public, except in limited circumstances specifically enumerated in 5 ILCS 120/2(c), which exceptions are to be strictly construed.

120. Section 3 of the Open Meetings Act, 5 ILCS 120/3, authorizes any person, the Public Access Counselor, or the State's Attorney to bring a civil action to enforce the Act, including by way of declaratory and injunctive relief and by way of voidance of any final action taken in violation of the Act.

121. Upon information and belief, the Village Board of the Village of Grayslake convened closed (Executive) sessions during the 2024 to 2025 approval cycle, including on May 6, 2025 (the night of the final approval action) and on June 17, 2025. The Village's Agendas and Minutes index records the existence of those Executive Sessions.

122. Upon information and belief, one or more material aspects of the discretionary approvals at issue in this action, and one or more material terms of the development agreement(s) between the Village and Defendant T5 Data Centers, LLC, were negotiated, deliberated, or effectively decided in closed session, without falling within any of the narrowly enumerated exceptions of 5 ILCS 120/2(c).

123. Upon information and belief, members of the Village Board engaged in serial communications among themselves regarding the T5 approvals through personal email accounts and other private channels, outside of properly noticed and conducted open meetings, in further violation of the Open Meetings Act.

124. Then-Trustee Davies's April 22, 2025 statement that as incoming Mayor she would be "extremely cautious when it comes to communication" and that she did not want to "hurt a potential development" by disclosing information about it is evidence, from an incumbent Trustee, that the Village's public-communication practices with respect to the T5 approvals reflected active nondisclosure to the public.

125. The Village's failure to deliberate the substance of the T5 approvals in open session deprived Plaintiffs and the public of the rights conferred by the Open Meetings Act and renders the resulting approvals and development agreement(s) voidable.

WHEREFORE, Plaintiffs respectfully request that this Court enter judgment in their favor and against Defendants Village of Grayslake and T5 Data Centers, LLC on Count IV, and grant the following relief:

- a. A declaration that the Village violated the Illinois Open Meetings Act in connection with the 2024 to 2025 approvals and the related development agreement(s);
- b. An order, pursuant to 5 ILCS 120/3, voiding the development agreement(s) between the Village and T5 Data Centers, LLC;
- c. A permanent injunction prohibiting future violations of the Open Meetings Act in connection with the matters at issue;

- d. An award of attorneys' fees and costs pursuant to 5 ILCS 120/3(d);
- e. Such other and further relief as this Court deems just and proper.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request that this Court enter judgment in their favor and against Defendants on all Counts, and grant the following relief:

- a. A declaration that the 2024 to 2025 approvals are invalid and unenforceable;
- b. A judgment vacating and setting aside the 2024 to 2025 approvals;
- c. An order voiding the development agreement(s) between the Village and T5 Data Centers, LLC;
- d. A permanent injunction prohibiting the Village from issuing any further permits to Defendants T5 Data Centers, LLC or its affiliates in reliance on the 2024 to 2025 approvals;
- e. Attorneys' fees and costs to the extent recoverable under 5 ILCS 120/3(d), under this Court's inherent equitable jurisdiction and the common-law substantial-benefit doctrine, or under any other applicable authority, including without limitation such fees as may be awarded as sanctions under Illinois Supreme Court Rule 137 for any pleading, motion, or other document not well grounded in fact or law;
- f. Such other and further relief as this Court deems just and proper, including the right to bring a separate action under 65 ILCS 5/11-13-15 for enforcement of zoning conditions or development agreement obligations if and when any specific permit issues or any specific condition is breached.

Dated: _____, 2026

Respectfully submitted,

**PRESERVATION OF COMMUNITY WELL-BEING
COLLECTIVE LLC; SUZANNE P. WILLIAMS;
ROBIN A. WELLER;
PAMELA A. HERMON;
MARION L. EICKHOFF;
GABRIELA U. APPELT;
MARY ANNE FORTMANN;
ROBERT C. BAUM;
CHERYL FEDDOR; and
GAVIN RYCHENER,
Plaintiffs,**

By: Chloe Ann Russell

One of their attorneys

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